

INTA Practice Guides Report

Trademark Cancellations Guide

Austria

SINGLE JURISDICTION REPORT

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I. Availability — A. Availability

- Cancellation of a trademark is available for: national marks; international marks; European Union Trade Marks.
- "Cancellation" is defined by legislation as follows: According to Article 29 of the Trademark Act, a trademark will be canceled: on the owner's request; if the trademark is not renewed in time; by the Austrian Patent Office for absolute reasons (ex officio); or on the basis of a positive and binding decision of the Austrian Patent Office on an opposition or cancellation action. The cancellation must be registered in the trademark register and must be published.
- Cancellation actions can be filed online at the following URL: As a participant in the electronic legal transactions system (ERV), one can submit cancellation actions to the Nullity Department of the Austrian Patent Office electronically.

II. Grounds — A. Absolute Grounds

- The following absolute grounds may be raised in cancellation proceedings: the mark is descriptive; the mark is misleading and/or deceptive; the mark lacks distinctiveness; the mark is generic; the mark consists of a geographical indication; the mark is functional; the mark is against public policy or principles of morality; the mark has not been authorized by competent authorities pursuant to Article 6ter of the Paris Convention; the mark includes a badge or emblem of particular public interest; the mark is used in a misleading and/or deceptive manner; the mark is prohibited in this jurisdiction; the application for or registration of the mark was made in bad faith; other absolute grounds, i.e., grounds that relate to the inherent registrability of a mark: rights based on designation of origin or geographical indication; designation of wines, traditional specialties, or plant variety rights.

II. Grounds — B. Relative Grounds

- The following relative grounds may be raised in cancellation proceedings: there is an earlier application or registered mark; there are earlier use-based rights in an unregistered mark; the application for or registration of the mark was made in bad faith; the mark is covered by a copyright; the mark is a company name; the mark is notorious or well known (Article 6bis of the Paris Convention); the trademark application was filed or the registration was granted in the name of an agent or other person with a business connection to the owner of the mark (Article 6septies of the Paris Convention); the mark is a trade or business name; the mark is a domain name.

II. Grounds — C. Grounds Other Than Absolute, Relative or Non-Use

- Other than the absolute or relative grounds listed above and/or the non-use grounds listed below, there are no other grounds that may be raised in cancellation

proceedings.

II. Grounds — D. Non-Use Grounds

- Non-use may be raised as a ground in cancellation proceedings.
- In relation to cancellation for non-use, "use" is defined as: serious use as a trademark for the covered goods or services.
- The definition of "use" provided above is derived from statute, regulation or administrative rule: Article 33a of the Trademark Act. Case law specifies the nature and manner of serious use of a trademark under the specific circumstances, goods, or services of a case. The use of a sign to label goods and services is considered—in particular, on the packaging of goods or on objects executing the services, on import or export goods, as a trade or company name, on business papers, or in advertisements. The use of a trademark with a divergence in some elements without influence on the distinctive character of the mark does not have a negative impact on serious use.
- Use by a licensee or with the consent of the proprietor constitutes use by the proprietor.
- The time frame within which a mark must be used in order to avoid cancellation runs from: the date of filing of the application for registration.
- Counting from the above date, to avoid cancellation for non-use, the mark must be used within: five years after the end of the opposition period of three months or after the final decision in an opposition procedure.
- There are no consequences to the interruption of use during the period noted above. After this period, there still are no immediate consequences until a party files an application for cancellation on the ground of non-use. The period is always calculated from the date of application. However, after the uninterrupted period of non-use over five years, restarted use within three months before the date of application for cancellation will not be considered if the preparation for this use started only after the mark owner was informed by the later petitioner that a cancellation action might be filed.

II. Grounds — E. Multiple Grounds

- An application for cancellation may be based on multiple grounds (i.e., on a combination of absolute, relative and non-use grounds).
- The advantages of filing an action based on multiple grounds are as follows: The likelihood of the action's being successful is higher since any one ground is sufficient for success. In that procedures before the Office are time consuming and it is difficult to have a hearing set within a reasonable time frame, it is better to raise all possible grounds in one hearing.
- If an action is based on multiple grounds and the action could be disposed of on one ground, the other grounds will nevertheless be considered.

II. Grounds — F. International Registrations and European Union Trade Marks

- Grounds for cancellation are the same in respect of international marks as they are for national marks.
- Grounds for cancellation are the same in respect of European Union Trade Marks as they are for national marks.

II. Grounds — G. Introduced Later in Proceedings

- Additional grounds for cancellation may not be introduced at a later stage in the proceedings. Since such introduction is considered a change of the cancellation action, it is possible without approval of the respondent only in an early stage of the proceedings until the action has been served to file the statement of defense. Afterwards, the introduction of new grounds requires the approval of the respondent.

III. Forum — A. Forum

- The forum for cancellation proceedings is the same regardless of the grounds on which the proceedings are brought. Cancellation proceedings on all grounds may be brought before the following administrative body: the Austrian Patent Office.
- The administrative body/bodies listed above is/are independent of the trademark registry.

IV. Standing — A. On Basis of Grounds

- The parties that have legal standing to apply for cancellation vary, depending on the grounds for the cancellation.
- For cancellations based on absolute grounds, the following parties have standing: any person. Legal interest is not required.
- For cancellations based on relative grounds, the following parties have standing: any interested person. Legal interest is required.
- For cancellations based on non-use grounds, the following parties have standing: any person. Legal interest is not required.

IV. Standing — B. Person/"Interested Person" Defined

- For purposes of standing, a "person" is defined as: both natural and juridical persons.
- For purposes of standing, an "interested person" is defined as: someone who has filed an earlier pending application to register a conflicting trademark; someone who owns an earlier conflicting trademark registration; someone who owns rights in a conflicting trademark that were acquired through use; someone who is a licensee of any conflicting trademark or other intellectual property right; someone who owns a company name that conflicts with the mark that is the subject of the trademark application; someone who is of the opinion that the mark was not registrable.

IV. Standing — C. Domestic/Foreign Applicant

- The legal standing criteria for domestic and foreign applicants are the same, regardless of the grounds for cancellation.

IV. Standing — D. Multiple Applicants

- More than one applicant may apply jointly for cancellation, regardless of the grounds for cancellation.

IV. Standing — E. Infringement Defendant as Applicant

- In a court action for trademark infringement, cancellation of the plaintiff's trademark registration may not be sought by a defendant.

V. Representation — A. Qualifications

- The applicant is always required to appoint a representative (attorney, agent or other legal representative) in cancellation proceedings.

- The representative must be domestic, i.e., with an office in the jurisdiction.
- There are no additional professional qualifications that are required of a representative in cancellation proceedings.

V. Representation — B. Power of Attorney-- Notarization/Legalization Requirements

- A signed power of attorney need not be provided to a representative by an applicant in cancellation proceedings.
- There are no notarization/legalization requirements for a power of attorney form in cancellation proceedings.

VI. Commencement — A. Timing

- Cancellation proceedings that are independent of opposition proceedings may never be commenced before a mark is registered.

VI. Commencement — B. Deadline

- The deadline for bringing cancellation proceedings varies, depending on the grounds for cancellation. For proceedings based on relative grounds, the deadline is: Proceedings based on an earlier trademark against an infringing trademark must be filed within five years from the knowledge of the infringing trademark. This applies for goods and services for which the earlier trademark is used and only if the registration of the earlier trademark was not made in bad faith.

VI. Commencement — C. Statute of Limitations

- The statute of limitations or acquiescence provisions that will prevent cancellation vary, depending on the grounds for cancellation. For proceedings brought on relative grounds, the statute of limitations or acquiescence provision is: within five years from the knowledge of the infringing trademark in proceedings based on an earlier trademark. This applies for goods and services for which the earlier trademark is used and only if the registration of the earlier trademark was not made in bad faith.

VII. Partial Cancellation — A. Partial Cancellation

- Partial cancellation of a registration is possible, regardless of the grounds for cancellation.
- For single-class registrations and for multi-class registrations, it is possible to apply for cancellation of some of the goods either within the single class or within a given class, as appropriate, without applying for cancellation of all of the goods within the class.

VIII. Length of Proceedings — A. Length of Proceedings

- The average duration of cancellation proceedings is: two to three years.
- After final arguments have been made and/or oral hearings have taken place, a decision will be rendered within the following time frame: 6 to 12 months.

IX. Costs and Fees to Initiate — A. Costs and Fees to Initiate

- The following costs and fees are associated with initiating cancellation proceedings: attorney fees; statutory or regulatory fees.
- Official fees are refundable if an application for cancellation is withdrawn, regardless of the grounds for cancellation, as follows: Half of the stated fee is refunded if the

application is withdrawn before the hearing.

- If an application for cancellation is based on multiple grounds, no additional official fees are due.

X. Documentation-- Notarization / Legalization Requirements — A. Documentation-- Notarization / Legalization Requirements

- The following documents must be notarized in cancellation proceedings, regardless of the grounds for cancellation: All documents not in the German language must be submitted with a legalized translation.
- The documentation that must be submitted and the procedures necessary to initiate cancellation proceedings are the same, regardless of the grounds for cancellation and are as follows: With the cancellation action itself no documentation need be submitted. Documentation usually is submitted only if the opponent has filed a writ of defense, and then, if necessary for the specific ground. In many cases, the Office decides on the basis of the trademarks and does not need documentation.

XI. Discovery — A. Interrogatories

- No party may request that any other party answer written questions, under oath ("Interrogatories").

XI. Discovery — B. Document Requests

- No party may request that any other party produce documents in response to written document requests ("Document Requests").

XI. Discovery — C. Depositions

- No party may request that one or more witnesses for any other party appear in person to be cross-examined under oath ("Depositions").

XII. Burden of Proof — A. Burden of Proof

- The burden of proof can shift to the other party during the course of cancellation proceedings under the following circumstances: Please consult local counsel.

XIII. Written Arguments — A. Requirement/Deadline

- Written arguments are optional.
- There are no deadlines for submitting written arguments in cancellation proceedings.

XIV. Oral Hearings — A. Oral Hearings

- Oral hearings are permitted in cancellation proceedings.
- The determination of whether oral hearings will take place is made by: the Patent Office.

XV. Evidence — A. To Establish Absolute Grounds

- The following types of evidence may be submitted to establish absolute grounds: documents; witnesses; expert opinions.
- Evidence must be submitted to: the Patent Office.
- Evidence must be submitted by the following deadline: up to the hearing at the latest.

XV. Evidence — B. To Establish Relative Grounds

- The following types of evidence may be submitted to establish relative grounds: documents; witnesses; expert opinions.
- Evidence must be submitted to: the Patent Office.
- Evidence must be submitted by the following deadline: up to the time of the hearing at the latest.

XV. Evidence — C. To Establish Non-Use Grounds

- The following types of evidence may be submitted to establish non-use grounds: documents; witnesses; expert opinions.
- Evidence must be submitted to: the Patent Office.
- Evidence must be submitted by the following deadline: up to the time of the hearing at the latest.

XV. Evidence — E. Applicant's Proof of Use

- The applicant is not required to submit proof of use of the mark on which the cancellation is based.

XV. Evidence — F. Applicant's Extensions of Time

- Extensions of time available for the applicant's submission of evidence are the same, regardless of the grounds on which the cancellation proceedings are based. Extension is possible for: documents; witnesses; expert opinions.
- No official fees are payable to obtain an extension for submitting evidence.

XV. Evidence — G. Additional Evidence

- Additional evidence may be submitted at a later stage in the cancellation proceedings. The deadline for submitting additional evidence is: At the latest, evidence should be submitted during the hearing; however, to avoid the risk that it may be rejected by the Patent Office, it should be submitted in a timely manner—at least one to two months before the hearing.

XV. Evidence — H. Evidence in Reply/Deadline and Extensions

- Evidence in reply is optional.
- There is no deadline for the submission of evidence in reply.
- Petitioner cannot demand that respondent provide additional particulars relating to the respondent's proffered evidence.

XV. Evidence — I. Proof of Respondent's Use

- The respondent may submit the following kinds of evidence to prove use: invoices; catalogues; evidence of turnover; packaging; labels; price lists; advertisements; written statements; market surveys; use of the mark on the Internet; maintenance of a website; use of the mark on a social media site.
- In assessing whether "use has been made," sufficient use is demonstrated by: the respondent's submission of sufficient evidence regarding the serious and constant use of the trademark for the covered goods and services.
- The following factors are considered when determining whether a mark has been sufficiently used: the nature of the goods or services at issue; market characteristics; the scale and frequency of use of the mark; export use.

- The respondent cannot demand that the petitioner provide additional particulars relating to the petitioner's proffered evidence.

XV. Evidence — J. Consequences of Failure to Respond

- The consequences if a respondent fails to file a response or answer to a petition for cancellation are as follows: The court, other judicial tribunal or administrative body must consider and decide the matter on the merits despite such failure.

XVI. Defenses — A. Acquired Distinctiveness

- Acquired distinctiveness can be a valid defense in cancellation proceedings based on absolute grounds. The following criteria are used to establish acquired distinctiveness: expert opinion based on a survey (opinion poll) with an overwhelmingly positive result (recognition by 60 percent or more of the respondents).

XVI. Defenses — B. Excusable Non-use

- Non-use can be excused, thereby avoiding cancellation, if: the trademark owner can justify the non-use based on circumstances beyond its control (e.g., test phase of an expensive product, legal distribution restriction, natural catastrophe, strike, etc.).

XVII. Monetary Awards/Attorney Fees — A. Basis/Amount of Award

- A cancellation decision will not include a formal monetary award against the losing party, regardless of the grounds for cancellation.

XVII. Monetary Awards/Attorney Fees — B. Attorney Fees

- The successful party is entitled to recover attorney fees in cancellation proceedings, regardless of the grounds for cancellation.
- The award of attorney fees in cancellation proceedings is: mandatory.

XVIII. Conclusion of Proceedings — A. Effect of Decision

- A decision in cancellation proceedings is valid only between the parties to the proceedings, except that the decision will be valid against all third parties if it was brought on the following grounds: absolute grounds; non-use grounds.
- A decision ordering cancellation of a mark takes effect: and is final and binding if no party appeals the decision and the appellate instance has taken its decision. A decision ordering cancellation of a mark always has retroactive effect. For non-use, that is five years back from the day of application for cancellation, but at most back to the end of the fifth year of the protection period. For a generic term, that is back to the moment when the trademark became generic. For being misleading, that is back to the moment when the misleading use started. In all other cases, that is back to the beginning of the protection period.

XVIII. Conclusion of Proceedings — B. Withdrawal or Termination of Proceeding/Costs

- Cancellation proceedings can be terminated by withdrawing the cancellation application, regardless of the grounds for cancellation.
- Withdrawal of a cancellation application does not require the approval of the court, other judicial tribunal or administrative body; termination is automatic.
- Withdrawal of a cancellation application does not require the approval of the other party to the proceedings; termination is automatic regardless of the grounds for

cancellation.

- When cancellation applications are withdrawn, the cost of the proceedings is borne by: the petitioner, who has to reimburse the costs (usually the attorney fees) of the respondent.

XIX. Appeals — A. Availability/Deadline

- A cancellation decision may be appealed.
- Appeals of cancellation decisions must be brought before the following deadline: two months.

XIX. Appeals — B. Forum

- Regardless of the grounds for cancellation, appeals are heard by the following court or other judicial tribunal: Appellate Court of Vienna.

XIX. Appeals — C. New Evidence

- New evidence may not be submitted on appeal.

XIX. Appeals — D. Representation/Cost/Awards

- The approximate cost range of official fees (in local currency) to file an appeal is: EUR 800 in Office fees for each trademark that is the object of the appeal.
- Specialist counsel is not required, but is recommended, for an appeal of a cancellation decision.
- An appeal decision cannot include a monetary award against the losing party if the earlier decision did not include a monetary award.

XIX. Appeals — E. Scope

- An appeal is limited to points of law.

XIX. Appeals — F. Further Appeals/Alternatives to Appeal

- Appeal decisions may be further appealed. Appeal decisions may be appealed to: the Supreme Court. Details regarding the deadlines and fees for further appeal are as follows: The deadline is two months and fees are EUR 1,177.
- There is no alternative procedure to an appeal.

XX. Consequences — A. Status of Mark After Cancellation

- The terminology relating to cancellation proceedings can vary from jurisdiction to jurisdiction. Within jurisdictions, the grounds for bringing a cancellation proceeding can ultimately influence the legal consequences of the cancellation. In this jurisdiction, if an applicant is successful in obtaining cancellation, the legal consequences of the cancellation will depend on the grounds on which the proceedings were brought (see below).
- If an applicant succeeds in obtaining cancellation on absolute grounds: the mark is considered as if it were never registered.
- If an applicant succeeds in obtaining cancellation on relative grounds: Other: In most cases the mark is considered as if it were never registered, with two exceptions: Cancellation on the ground of a generic mark: The cancellation takes effect as of the moment proven to be when the mark has become generic; and Cancellation on the ground of misleading use: The cancellation has a retroactive

effect to the moment when the misleading use of the mark has been proven.

- If an applicant succeeds in obtaining cancellation on non-use grounds: Other: The decision has a retroactive effect of five years from the date of the application for cancellation, but at the most until the end of the fifth year of the protection period.
- If an applicant succeeds in obtaining cancellation on grounds other than absolute, relative or non-use grounds: Other: There are no other grounds.

XX. Consequences — B. Licenses, Assignments, Other Transactions

- The consequences for past assignments if a mark is cancelled are: Past assignments are not affected.
- The consequences for past licenses if a mark is cancelled are: Past licenses become invalid, as they lose their business objective.
- The consequences for past contracts if a mark is cancelled are: Past contracts become invalid, as they lose their business objective.

XXI. Notification to TM Office — A. Notification to TM Office

- There is no requirement to formally notify the Trademark Office following a decision to cancel a mark; cancellation is automatic regardless of the grounds on which the proceedings were brought.

XXII. Refiling of Identical Mark — A. Refiling of Identical Mark

- There are limitations as to when an application to register the mark can be refiled, depending on the grounds for the cancellation proceedings. Limitations are given when a mark is canceled on absolute grounds. If a mark is canceled on relative grounds, any party to the action or a third party can refile the mark. For obvious reasons, this will not work out if the winning party has an older mark.
- There are no time limits for refile following the cancellation of a mark.

XXIII. Collective Marks — A. Collective Marks

- Collective marks may be registered in this jurisdiction. Collective marks are defined as: a mark that is registered on behalf of an association. All members of this association have the right to use the mark provided that they comply with the requirements set by the association.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of collective marks. In addition, a collective mark can be canceled if the association, as owner of the mark, no longer exists or if the association permits or tolerates use of the mark that violates the general objectives or the bylaws of the association. Misleading use of the mark is considered such an abusive use.

XXIV. Certification Marks — A. Certification Marks

- Certification marks may be registered in this jurisdiction. Certification marks are defined as: a mark that is designated as such a mark and that is suitable, where the mark owner certifies that goods or services meet specific qualities of the material, the method of manufacture of the goods or delivery of the services, the quality, accuracy or other qualities, except of geographic indication.
- The provisions discussed throughout this jurisdictional profile all apply to the cancellation of certification marks.

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